

24STCV08426 24STCV08426

County: los-angeles

Division: Civil Law and Motion

Department: 414

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24STCV08426

Myers v. Christian Louboutin, LLC., et al.

Thursday,

August 6, 2026

[TENTATIVE]

ORDER GRANTING

PLAINTIFF'S AMENDED MOTION FOR APPROVAL OF PAGA SETTLEMENT (3077)

The

complaint alleges wage and hour claims in violation of the Labor Code, race discrimination under Fair Employment and Housing Act, a tort claim for wrongful termination in violation of public policy, and to recover penalties under the Private Attorney General Act (PAGA). Plaintiff seeks approval of settlement under PAGA. The Court has considered the motion, declarations, and evidence in support of the motion. No opposition has been filed.

The

court must review and approve PAGA settlements to ensure that any negotiated resolution is fair to those affected. (Lab. Code, § 2699(l)(2); Williams v. Superior Court (2017) 3 Cal.5th 531, 549.) The court conducts its assessment based on information "about the amount in controversy and the realistic range of outcomes." (Moniz v. Adecco USA, Inc. (2021) 72 Cal.App.5th 56, 76-77 ["We therefore hold that a trial court should evaluate a PAGA settlement to determine whether it is fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of

state labor laws.”.) The trial court has broad discretion in approving the settlement. (Id. at 78.)

A presumption of fairness exists where: “(1) the settlement is reached through arm’s-length bargaining; (2) investigation and discovery are sufficient to allow counsel and the court to act intelligently; (3) counsel is experienced in similar litigation; and (4) the percentage of objectors is small.” (Dunk v. Ford Motor Co. (1996) 48 Cal.App.4th 1794, 1802.) The court may also consider other factors as this list is not exhaustive. (Wershba v. Apple Computer, Inc. (2001) 91 Cal.App.4th 224, 244–245.)

Plaintiff

complied with the requirement to submit a copy of the proposed settlement agreement to the Labor and Workforce Development Agency (LWDA). (Lab. Code, § 2699 subd. (s)(2); (Lacour supp. decl. ¶ 2, Ex. E.) Documents submitted to the Labor and Workforce Development Agency LWDA “shall be transmitted online through the same system established for the filing of notices and requests.” (Lab. Code, § 2699 subd. (s)(4).)

The

parties settled the action after participating in a mediation and after conducting informal discovery and investigation. (Lacour Am. decl., 11-12.) Counsel’s firm’s litigation practice is made up of a substantial percentage of wage and hour violations in both class action and complex litigation matters. (Lacour supp. Decl., ¶ 26-28.) Counsel investigated and researched the facts and engaged in formal and informal discovery to assess the validity of Plaintiff’s claims. (Id. ¶¶ 9-11.)

The

parties agreed to a gross settlement of \$150,000 from which fees and costs and enhancement payments will be made. The payment to LWDA and the aggrieved employees are taken from the net settlement of \$73,250.

PAGA counsel fees (1/3
of gross settlement)

\$50,000

PAGA counsel costs
and expenses (not to exceed 25,000)

20,000

Settlement
Administration Costs

5750.00

Plaintiff's
enhancement payment

1,000

TOTAL deductions

\$76,750.00

Net settlement

73,250

LWDA (75 percent)

\$54,937.50

For distribution to 95
aggrieved employees (25 percent)

18,312.50

Accordingly, the court approves the
settlement.